

25STCV06419 25STCV06419

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-06-25
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Case Number: 25STCV06419 Hearing Date: June 25, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JEFFERY STEPHENS,

Plaintiff,

vs.

SRO COMBO APARTMENTS, LLC, et al.,

Defendants.

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CASE NO.: 25STCV06419

[TENTATIVE] ORDER DENYING MOTION TO STRIKE

Dept. 506

8:30 a.m.

June 25, 2026

On

March 6, 2025, Plaintiff Jeffery Stephens filed this action against Defendants SRO Combo Apartments LLC and Single Room Occupancy Housing Corporation.

On

August 22, 2025, Defendants filed a motion to strike.

The

court may, upon a motion or at any time in its discretion: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subds. (a)-(b).)

Defendants

seek to strike paragraphs 52 and 67, as well as the prayer for exemplary and punitive damages. A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.]

Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]”

(Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166, fn. omitted.) A corporate employer can be liable for punitive damages only when an officer, director, or managing agent of the corporation authorized or ratified the wrongful conduct or was personally guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (b).) The facts about exposed wires, an inoperable toilet, broken doors, cockroaches, bedbugs, standing gray water, broken smoke detectors, feces in common areas, mold, and other conditions—if proven—would support a finding of oppression or malice. (Complaint ¶¶ 16-24.) Allegations that Defendants knew of the conditions and failed to act—particularly through notice from the Los Angeles Housing Department (see Complaint ¶¶ 16-17, 29-30)—could also support a finding that Defendants’ agents ratified the conduct. The motion is denied for these items.

Defendants

also seek to strike paragraph 53 and the prayer for attorney fees. Defendants argue that because Plaintiff “did not attach a copy of the operative Lease Agreement, it is not possible to determine whether he was required to mediate or arbitrate disputes before filing this action, whether attorney fees were capped at a specific amount, or whether Plaintiff forfeited his entitlement to attorney fees when he filed this lawsuit.” Plaintiff alleges, “Subject to the terms of Plaintiff’s lease and/or applicable law, Plaintiff is entitled to an award of attorney’s fees and costs.” (Complaint ¶ 53.) If the lease does not provide for attorney fees, then as a matter of law, they will not be recoverable pursuant to the contract. But there is no harm or prejudice in Plaintiff alleging the possibility of contractual attorney fees. Moreover, attorney fees are available for Plaintiff’s claim under Civil Code section 1942.4. The motion is denied for these items.

The

motion to strike is DENIED.

Defendants

are ordered to file an answer within 10 days.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)
is also on calendar.

Dated this 25th day of June 2026

Hon. Thomas D. Long

Judge of the Superior
Court